Sl. No.	Case (Year)	Supreme Court Judgement
		contention of the petitioner holding that the fundamental rights could not be waived.
3.	Olga Tellis vs. Bombay Municipal Corporation (1985) (Popularly known as the Pavement Dwellers case)	It held that a person cannot waive any of the fundamental rights conferred upon him by any of his act and there cannot be any estoppel against the constitution. It asserted that the high purpose which the constitution seeks to achieve by conferment of fundamental rights is not only to benefit the individual but to secure the larger interests of the community.
4.	Nar Singh Pal vs. Union of India (2000)	It reiterated that the fundamental rights under the constitution cannot be bartered away. It asserted that the fundamental rights cannot be compromised, nor can there be any estoppel against the exercise of fundamental rights.

DOCTRINE OF ECLIPSE

1. Meaning of the Doctrine

The prospective nature of the provision under Article 13(1) of the constitution has led to the emergence of the doctrine of eclipse. This provision deals with the pre-constitution laws and declares that all such laws are void to the extent to which they are inconsistent with the Fundamental Rights[9].



The doctrine of eclipse is based on the notion that a pre-constitutional law which is inconsistent with a fundamental right is not a nullity or void from its very inception. Such a law becomes only inoperative from the date of the commencement of the constitution. It is overshadowed or eclipsed by the fundamental right and remains dormant but is not dead altogether. It is not wiped out completely from the statute book. It continues to exist (i) for all past transactions; (ii) for the enforcement of rights acquired and liabilities incurred before the date of the commencement of the constitution; and (iii) for the determination of rights of non-citizens who have not been given the fundamental rights by the constitution. Thus, it does not become void “in toto” or for all purposes or for all times or for all persons.

However, if the shadow cast on such a law by the relevant fundamental right is removed by an amendment of the constitution, then the law would again become constitutional and enforceable. In